Rooming accommodation agreement (Form R18)

Residential Tenancies and Rooming Accommodation Act 2008

residential tenancies authority

Part 1 Rooming accommodation information

Item 1

1.1 Agent or manager/Provider

Name/trading name: Sam Sample

Address: 1 Sample Street

Exampletown QLD Postcode 4000

1.2 Phone: 0400000000 Mobile: 0400000000 ABN (optional):

Email: sam.sample@example.com

Note – Item 1.2 is optional.

Item 2

2.1 Resident/s

1. Full name/s	Jordan Example		
Phone	0400000001	Email	jordan.example@example.com
Emergency contact full name/s	Riley Example		
Emergency contact phone	0400000002		
Emergency contact email	riley.example@example.com		

2. Full name/s			
Phone		Email	
Emergency contact full name/s			
Emergency contact phone			
Emergency contact email			

2.2 Address for service (if different from address of the premises in item 1.1). Item 2.2 is optional. See clause 36(4). Attach a separate list

Item 3

3.1 Manager/provider's agent If applicable. See clause 35

Name/trading name:

Address:

Postcode:

3.2 Phone: Mobile: ABN (optional):

Email:

Note – Item 3.2 is optional. See clause 35.

SAMPLE: not a real agreement

CC BY

Item 4

4.1 Resident's representative for notices If applicable.

Name/trading name

Address

Postcode

4.2 Phone

Mobile

Email

Note – Item 4.2 is optional.

Item 5

Notices may be given to
(Indicate if the email is different from item 1, 2, 3 or 4 above)

5.1 Agent or manager/provider

Email Yes ☑ No ☐ sam.sample@example.com

Text message Yes ☐ No ☑ Facsimile Yes ☐ No ☑

5.2 Resident/s

Email Yes ☑ No ☐ jordan.example@example.com

Text message Yes ☐ No ☑ Facsimile Yes ☐ No ☑

5.3 Provider's agent

Email Yes ☐ No ☑

Text message Yes ☐ No ☑ Facsimile Yes ☐ No ☑

5.4 Resident's representative

Email Yes ☐ No ☑

Text message Yes ☐ No ☑ Facsimile Yes ☐ No ☑

Item 6

6.1 Address of the rental premises

Room no.	1	9 Sample Road	
Exampletown QLD			Postcode 4000

6.2 Inclusions provided Insert inclusions, for example, furniture or other household goods let with the premises. Attach list if necessary.

Room: 1; Furnished; linen supplied

Type of rooming accommodation *(tick ✓ if applicable)*

☑ Level 1 ☐ Level 2 ☐ Level 3 ☐ Student accommodation

SAMPLE: not a real agreement

Item 7

7.1 The term of the agreement is ☑ fixed term agreement ☐ periodic agreement

7.2 Starting on 01/10/2026 **7.3 Ending on** 30/09/2027

Fixed term agreements only.

Item 8

Rent $ 250.00 ☑ weekly ☐ fortnightly ☐ monthly See clause 7(1)

Item 9

Breakdown of rent Please break down amount of rent for each – in either percentage or dollar values.

Accommodation	250.00	Other services (attach a list if necessary)	
Food service			
Personal care service			

Item 10

Rent must be paid on the Thursday day of each week

Insert day. See clause 7(2)

Insert weekly, fortnightly or monthly

Item 11

Methods of rent payment **Under section 98, there must be at least 2 ways. See also clause 7(3)(a)**

Method 1	Direct credit
Method 2	Cash. Cost to resident: None. Financial benefit to provider: None.

Details for direct credit

Bank/building society/credit union: Example Bank

BSB no.: 0 0 0 0 0 0 Account name: Sam Sample

Account no.: 0 0 0 0 0 0 0 0 0 Payment reference: Example room 1

Note – Under section 98, there must be at least 2 ways. See also clause 7(3)(a).

Item 12

Place of rent payment Insert where the rent must be paid. Item 12 is optional. See clause 7(6) to (8)

Item 13

13.1 Can the rent be increased? ☐ Yes ☑ No

13.2 The day the rent was last increased for the room

Note: The provider/provider's agent must not increase, or propose to increase, the rent payable by a resident less than 12 months after the last rent increase for the resident's room. Rent increase requirements do not apply to exempt provider's. The Act provides definitions for an exempt provider.

13.3 How will the rent increase be calculated?

13.4 When will the rent increase start?

Starting on See clause 9

Item 14

Rental bond amount $ 1,000.00 See clause 13

SAMPLE: not a real agreement

Item 15 **Services to be provided** Complete this section for all services that are being provided for a resident living in supported accommodation – attach list if necessary

- [x] **Level 1** – provide accommodation only
- [ ] **Level 2** – provide accommodation and a food service
  - [ ] Breakfast [ ] Lunch [ ] Dinner
- [ ] **Level 3 –** provide accommodation, a food service and personal care.
  - [ ] bathing, toileting or another activity related to personal hygiene
  - [ ] dressing or undressing
  - [ ] consuming a meal
  - [ ] meeting a mobility problem of the resident
  - [ ] taking medication
  - [ ] other:

SAMPLE: not a real agreement

Item 16 **Utility services for which the resident must pay.** Examples of services—electricity, gas and water. See clause 15

Item 17 **House rules have been provided to the resident/s** [x] Yes [ ] No See clause 18

Item 18
18.1 Number of persons allowed to reside in the room: 1
18.2 Number of persons allowed to reside at the rental premises: 4 See clause 19

Item 19
19.1 Are there any body corporate by-laws applicable to the occupation of the premises by a resident? See clause 25 [ ] Yes [x] No
19.2 Has the resident been given a copy of the relevant by-laws See clause 25 [ ] Yes [x] No

Item 20 **The type and number of pets approved by the provider to be kept in the resident's room** See clauses 26 to 29

Type _____ Number _____ Type _____ Number _____

For more information on what is defined as a pet and working dog visit the RTA's Renting with pets webpage.

Part 2 Standard Terms

Division 1 Preliminary

1 Interpretation

In this agreement –

(a) a reference to ***the rental premises*** includes a reference to any inclusions for the rental premises stated in item 6.2; and

(b) a reference to a numbered section is a reference to the section in the *Residential Tenancies and Rooming Accommodation Act 2008* (***the Act***) with that number; and

(c) a reference to a numbered item is a reference to the item with that number in part 1 of this agreement; and

(d) a reference to a numbered clause is a reference to the clause of this agreement with that number.

2 Terms of a rooming accommodation agreement – s 72 – 74

(1) This part states, under the section 73, the standard terms of a rooming accommodation agreement.

(2) The Act also imposes duties on, and gives entitlements to, the provider and resident that are taken to be included as terms of this agreement.

(3) The house rules for the rental premises are taken to be included as terms of this agreement.

(4) The provider and resident may agree on other terms of this agreement (***special terms***).

(5) A duty or entitlement under the Act overrides a standard term or special term if the term is inconsistent with the duty or entitlement.

(6) A standard term overrides a special term if they are inconsistent.

(7) Any body corporate by-laws that apply to the occupation of the rental premises by the resident, for the time being in force, are taken to be terms of this agreement.

(8) A breach of this agreement may also be an offence under the Act.

Examples for subclause (8) –

1 It is an offence for the provider or provider's agent to enter the resident's room in contravention of the rules of entry under sections 257 to 262.

2 It is an offence if the resident does not sign and return the condition report to the provider or provider's agent under section 81.

Division 2 Entering rooming accommodation agreement

3 Start of rooming accommodation agreement

This agreement starts on the day stated in item 7.2

4 Entry condition report – s 81

(1) This clause applies only if a rental bond is payable, or has been paid, under this agreement.

(2) The provider or provider's agent must prepare, in the approved form, and sign a condition report for the resident's room and the facilities in the room.

(3) A copy of the condition report must be given to the resident on or before the day the resident occupies a room in the rental premises under this agreement.

(4) If the resident does not agree with the condition report, the resident must mark the copy of the report in an appropriate way to show the parts the resident disagrees with.

(5) The resident must sign and return the copy of the condition report to the provider or provider's agent no later than 7 days after the later of the following days –

(a) the day the resident occupies the resident's room;

(b) the day the resident is given the copy of the condition report.

(6) After the copy of the condition report is returned to the provider or provider's agent by the resident, the provider or provider's agent must make a copy of the condition report and return it to the resident within 14 days.

(7) However, the provider or provider's agent does not have to prepare a condition report for the resident's room if –

(a) this agreement has the effect of continuing the resident's right to occupy the room under an earlier rooming accommodation agreement; and

(b) in accordance with the Act, a condition report was prepared for the room for the earlier rooming accommodation agreement.

(8) If a condition report is not prepared for this agreement because subclause (7) applies, the condition report prepared for the earlier rooming accommodation agreement is taken to be the condition report for this agreement.

5 Continuation of fixed term agreement – s 82

(1) This clause applies if –

(a) under this agreement, rooming accommodation is provided to the resident for a fixed term; and

(b) neither the provider nor the resident gives the other party a notice under chapter 5, part 2 of the Act ending the agreement or agrees in writing with the other party to end the agreement under section 366(a).

(2) This agreement continues to apply after the last day of the term, as a periodic agreement, on the same terms on which it applied immediately before the last day of the term, other than the term about the fixed term.

6 Costs apply to early ending of fixed term agreement – s 396A

(1) This clause applies if –

(a) this agreement is a fixed term agreement; and

(b) the resident ends this agreement before the term ends other than in a way permitted under the Act.

(2) The resident must pay the reletting costs under section 396A(3).
Note – For when the resident may end this agreement early, see clause 30.

(3) This clause does not apply if, after experiencing domestic violence, the resident ends the resident's interest in this agreement under chapter 5, part 2, division 3, subdivision 2A of the Act.
For more information visit the Domestic violence in a rental property webpage on the RTA website.

Division 3 Rent

7 When, how and where rent must be paid – ss 98 – 100

(1) The resident must pay the rent stated in item 8.

(2) The rent must be paid on the days stated in item 10.

(3) The rent must be paid –

(a) in a way stated in item 11; or

Note – Under section 98, at least 2 ways for the resident to pay the rent must be stated in this agreement.

(b) in a way agreed after the signing of this agreement by –

(i) the provider or resident giving the other party a notice proposing a way; and

(ii) the other party agreeing to the proposal in writing; or

(c) if the provider or provider's agent intends to change the way rent is paid to a way that is not stated in item 11 and no way is agreed to after the signing of this agreement – in a way the provider or provider's agent proposes by notice to the resident under section 99A.

(4) The provider or provider's agent must give the resident notice advising of the costs associated with the ways to pay rent offered to the resident that the resident would not reasonably be aware of if the provider or provider's agent knows or could reasonably be expected to find out about the costs.

SAMPLE: not a real agreement

(5) Also, the provider or provider's agent must declare any financial benefit the provider or provider's agent may receive if the resident uses a particular way to pay rent.
(6) If a place is stated in item 12, the rent must be paid at the place.
(7) If, after the signing of this agreement, the provider gives a notice to the resident stating a place, or a different place, for payment of rent and the place is reasonable, the rent must be paid at the place while the notice is in force.
(8) If no place is stated in item 12 and there is no notice stating a place, the rent must be paid at an appropriate place.
Examples of an appropriate place –
- the provider's address for service
- the office of the provider's agent.

8 Rent in advance – s 101

The provider or provider's agent may require the resident to pay rent in advance only if the payment is not more than 2 weeks rent.
Note – Under section 101(2), the provider or the provider's agent must not require payment of rent under this agreement in a period for which rent has already been paid.

9 Rent increases – ss 105 and 105B

(1) If a provider proposes to increase the rent, the provider must give notice of the proposal to the resident.
Note – see section 105D
(2) The notice must state –
(a) the amount of the increased rent; and
(b) the day from when the rent is payable; and
(c) if the provider is not an exempt provider under the Act—the day the rent was last increased for the resident's room.
(3) The day from which the increased rent is payable must not be earlier than the later of the following –
(a) 4 weeks after the notice is given;
(b) 12 months after the last rent increase for the resident's room in accordance with section 105B.
(4) Also, if this agreement is for a fixed term, the rent may not be increased before the term ends unless –
(a) item 13.1 states rent can be increased; and
(b) item 13.3 states the amount of the increase or how the amount of the increase is to be worked out; and
(c) the increase is made in accordance with item 13.3.
(5) Subject to an order of the tribunal, the increased rent is payable from –
(a) if this agreement is for a fixed term—the day stated in item 13.4; or
(b) if this agreement is not for a fixed term—the day stated in the notice.
(6) However, increased rent is payable by the resident only if –
(a) the rent is increased in compliance with this clause and the Act; and
(b) the increased rent is not payable earlier than 12 months after the last rent increase for the resident's room in accordance with section 105B; and
(c) the increase in rent does not relate to –
(i) compliance of the rental premises with the prescribed minimum housing standards; or
(ii) keeping a pet or working dog in the room.
(7) Subclauses (1) to (6) do not apply if the parties to this agreement amend this agreement to provide for another service to be provided by the provider to the resident and for an increase in the rent in payment of the service.
(8) However, subclause (7) does not apply if the provision of the service –
(a) is necessary for the rental premises to comply with the prescribed minimum housing standards; or
(b) is a condition of the provider's approval to keep a pet in the resident's room.

10 Resident's application to tribunal about rent increase – s 105A

(1) After the provider gives the resident notice of a proposed rent increase, the resident may apply to the tribunal for an order reducing the amount of, or stopping, the proposed increase of rent if the resident believes the increase –
(a) is excessive; or
(b) is not payable under clause 9.
(2) However, the application must be made –
(a) within 30 days after the resident receives the notice; and
(b) if this agreement is a fixed term agreement – before the term of this agreement ends.

11 Rent decreases for matters including loss of amenity or service – s 106

(1) This clause applies if –
(a) the resident's room or common areas become partly unfit to live in, or their amenity or standard substantially decreases, other than because of intentional or reckless damage caused by the resident or a guest of the resident; or
(b) a service provided to the resident under this agreement is no longer available or is withdrawn, or the standard of the service substantially decreases, other than because the resident has not met the resident's obligations under this agreement.
(2) The rent payable under this agreement decreases by the amount, and from the time, agreed between the provider and the resident.
(3) If the provider and the resident can not agree on the amount or time for the decrease, either of them may apply to a tribunal for an order decreasing the rent by a stated amount from a stated time.

12 Rent decreases because of resident's absence – s 107

(1) This clause applies if either of the following is not provided to the resident because of the resident's absence –
(a) a personal care service;
(b) a food service, but only if the resident is absent from the rental premises for a continuous period of more than 2 weeks.
(2) The provider and the resident may agree to a reduction in rent for the period of the absence.
(3) If the provider and the resident can not agree on a reduction in rent for the period of the absence, the resident may apply to the tribunal for an order decreasing the rent by a stated amount for the period.

Division 4 Rental bond

13 Rental bond required – ss 111, 116 and 118

(1) If a rental bond is stated in item 14, the resident must pay to the provider or the provider's agent the bond –
(a) if a special term requires the bond to be paid at a stated time – at the stated time; or
(b) if a special term requires the bond to be paid by instalments – by instalments; or
(c) otherwise – when the resident signs this agreement.
Note – There is a maximum rental bond that may be required. See sections 112(2) and 146.
(2) The provider or the provider's agent must pay the rental bond to the authority and give the authority a notice, in the approved form, about the bond.
Note – For when the provider or provider's agent must pay the rental bond to the authority, see sections 116 and 118. Generally, the provider or provider's agent must pay the rental bond to the authority within 10 days of receiving it.

SAMPLE: not a real agreement

(3) The rental bond is intended to be available to financially protect the provider if the resident breaches this agreement.

Example –
The provider may claim against the rental bond if the resident does not leave the resident's room in the required condition at the end of the rooming accommodation agreement.

Note – For how to apply to the authority or tribunal for the bond at the end of the rooming accommodation agreement, see sections 125 to 141.

14 Increase in rental bond – s 154

(1) The resident must increase the rental bond if –
  (a) the rent increases and the provider gives notice to the resident to increase the bond; and
  (b) the notice is given at least 11 months after –
    (i) this agreement started; or
    (ii) if the bond has been increased previously, following a notice given under this clause – the day stated in the notice, or the last notice, for making the increase.

(2) The notice must state the increased amount and the day by which the increase must be made.

(3) For subclause (2), the day must be at least 1 month after the notice is given to the resident.

Division 5 Outgoings

15 Charge for utility service – s 170

(1) The resident must pay an amount for utility services supplied to the rental premises during this agreement if –
  (a) the service is stated in item 16; and
  (b) the resident's room is separately metered for the utility service by an appliance approved by the supplying entity.

(2) The provider must give the resident a copy of the documents about the amount charged by the supplying entity within 4 weeks after the provider receives the documents.

(3) The resident is not required to pay an amount for utility services if the provider does not give the resident a copy of the documents.

Note – Section 170(2)(b) limits the amount the resident must pay.

Division 6 Rights and obligations of provider and resident

16 Provider's obligations – ss 247 and 249

(1) The provider has the following obligations –
  (a) to ensure the provider is not in breach of a law dealing with issues about the health or safety of persons using or entering the resident's room or common areas;
  (b) to take reasonable steps to ensure the resident –
    (i) always has access to the resident's room and to bathroom and toilet facilities; and
    (ii) has reasonable access to any other common areas;
  (c) to take reasonable steps to ensure the security of the resident's room and the resident's personal property in the room;
  (d) to maintain the resident's room and common areas in a way that the room and areas remain fit for the resident to live in;
  (e) to take reasonable steps to ensure the resident's room and common areas and facilities provided in the room and areas –
    (i) are kept safe and in good repair; and
    (ii) subject to any agreement with the resident about cleaning the resident's room or common areas or facilities – are kept clean;
  (f) not to unreasonably restrict the resident's guests in visiting the resident;
  (g) to ensure that the times during which the provider, or provider's agent, is available to be contacted by the resident are reasonable, having regard to all the circumstances including the services being provided to the resident under this agreement;
  (h) to ensure the rental premises otherwise comply with any prescribed minimum housing standards applying to the rental premises.

(2) For subclause (1)(e)(ii), an agreement about cleaning common areas may be made only for a common area used by the resident and a minority of other residents of the provider.

Example –
Four residents have individual rooms opening out onto a living area which is available for use only by those residents. The provider and the 4 residents may agree that the cleaning of the living area is to be done by the 4 residents.

(3) The provider must take reasonable steps to ensure the resident has quiet enjoyment of the resident's room and common areas.

(4) The provider or the provider's agent must not interfere with the reasonable peace, comfort or privacy of the resident in using the resident's room and common areas.

17 Resident's obligations generally – s 253

(1) The resident has the following obligations –
  (a) to use the resident's room and common areas only or mainly as a place of residence;
  (b) not to use the resident's room or common areas for an illegal purpose;
  (c) not to interfere with, and to ensure the resident's guests do not interfere with, the reasonable peace, comfort or privacy of another resident or another resident's appropriate use of the other resident's room or common areas;
  (d) to pay the rent when it falls due;
  (e) not to keep an animal on the rental premises without the provider's approval;
  (f) not to intentionally or recklessly damage or destroy, or allow the resident's guests to intentionally or recklessly damage or destroy, any part of the rental premises or a facility in the rental premises;
  (g) to keep the resident's room and inclusions clean, having regard to their condition at the start of this agreement;
  (h) to maintain the resident's room in a condition that does not give rise to a fire or health hazard.

Examples of a fire hazard –
- allowing newspapers to build up in the resident's room
- blocking access to the resident's room.

(2) The resident's obligations under subclause (1) do not apply to the extent the obligations would have the effect of requiring the resident to repair, or compensate the provider for, damage to the resident's room or inclusions caused by an act of domestic violence experienced by the resident.

For more information visit the Domestic violence in a rental property webpage on the RTA website.

18 House rules – ss 266–276

(1) The resident must comply with the house rules for the rental premises.

(2) The provider or provider's agent must give a copy of the house rules for the rental premises to the resident before entering into this agreement.

(3) The provider or the provider's agent for the rental premises must ensure a copy of the house rules for the rental premises is displayed, at all times, at a place in the rental premises where it is likely to be seen by the residents.

(4) At least 7 days before making any changes to the house rules for the rental premises, the provider must give a notice to the resident stating the following –
  (a) the proposed changes and the day the changes are to take effect;
  (b) that the resident may object to the changes and how an objection may be made.

(5) However, if this agreement starts less than 7 days before the proposed changes are to take effect, the provider need only give the notice mentioned in subclause (4) when this agreement starts.

SAMPLE: not a real agreement

19 Number of occupants allowed

(1) No more than the number of persons stated in item 18.1 may reside in the room.
(2) No more than the number of persons stated in item 18.2 may reside at the rental premises.
(3) However, more people may reside in the resident's room or at the rental premises if the resident and the provider agree.

20 Supply of locks and keys – s 250

(1) The provider must supply and maintain all locks necessary to ensure the resident's room is reasonably secure.
(2) The provider must give the resident a key for each lock that secures an entry to the following –
  (a) the resident's room;
  (b) a building or building within which the resident's room and common areas are situated.
(3) The resident must not make a copy of the key without the provider's permission.
(4) The resident must not tamper with a door lock in the rental premises.

21 Changing locks – s 251

(1) The resident may request the provider to change or repair a lock that secures entry to the resident's room if the resident reasonably believes there is the likelihood of –
  (a) risk to the resident's safety; or
  (b) theft of, or damage to, the resident's belongings.
(2) The provider must not act unreasonably in failing to agree to change or repair the lock.
(3) Also, the provider must change or repair the lock if the request states it is made for the purpose of protecting the resident from domestic violence.
  For more information visit the Domestic violence in a rental property webpage on the RTA website.
(4) If the provider changes a lock because of a request mentioned in subclause (3), the provider must not give a key for the changed lock to any other person other than the resident without the resident's agreement or a reasonable excuse.

22 Fixtures or structural changes – ss 254A–255A

(1) The resident may attach a fixture, or make a structural change, to the rental premises only if –
  (a) the resident gives the provider a request, in the approved form, for approval to attach the fixture or make the structural change; and
  (b) the provider agrees to the request; and
  (c) for body corporate rental premises—the body corporate agrees to the request;
  d) the fixture is attached, or structural change is made, in accordance with the provider's agreement.
  Note – Fixtures are generally items permanently attached to land or to a building that are intended to become part of the land or building. Attaching a fixture may include, for example, gluing, nailing or screwing the fixture to a wall.
(2) The provider must –
  (a) decide the request –
    (i) within 28 days after receiving the request; or
    (ii) if the rental premises are not body corporate rental premises—within a longer period, if agreed to by the resident and provider; and
  (b) advise the resident of the provider's decision; and
  (c) if the provider agrees to the request and the rental premises are body corporate rental premises –
    (i) state that the provider's agreement is subject to the agreement by the body corporate; and
    (ii) give the request to the body corporate within 28 days after receiving the request; and
    (iii) advise the resident as soon as reasonably practicable of the body corporate's decision about the request.
(3) If the provider agrees to the request, the provider must give the resident an agreement that –
  (a) is in writing; and
  (b) describes the nature of the fixture or structural change; and
  (c) states any conditions of the agreement, including any conditions given by the body corporate.
  Examples of conditions –
  - that the resident must maintain the fixture in a particular way
  - that the resident must remove the fixture and must repair damage caused by removing the fixture
  - that the provider must compensate the resident for the fixture if the resident can not remove it
(4) The resident must comply with any conditions of the agreement given by the provider or body corporate.
(5) In this clause –
  body corporate rental premises means rental premises –
  (a) that are part of a body corporate scheme; and
  (b) for which, under a body corporate law or body corporate by-law, the approval of the body corporate is required for the attachment of a fixture, or the making of a structural change, to the premises.

23 Action by provider for breach of provider's agreement about fixture or structural change – s 256

(1) This clause applies if –
  (a) the resident attaches a fixture, or makes a structural change, to the rental premises; and
  (b) the provider's agreement is given under section 255 to attach the fixture or make the structural change; and
  (c) the resident does not attach the fixture, or make the structural change, in accordance with the provider's agreement.
(2) The provider may –
  (a) take action for a breach of a term of this agreement; or
  (b) waive the breach and treat the fixture or structural change as an improvement to the rental premises for the provider's benefit.

24 Provider's right to enter resident's room – ss 257–262

The provider or the provider's agent may enter the resident's room during this agreement only if the obligations under sections 257 to 262 have been complied with.

25 Body corporate by-laws

(1) The provider must give the resident a copy of any body corporate by-laws applicable to –
  (a) the occupation of the rental premises; or
  (b) any common area available for use by the resident with the rental premises.
(2) The resident must comply with the body corporate by-laws.
(3) Subclause (1) does not apply if –
  (a) this agreement has the effect of continuing the resident's right to occupy the rental premises under an earlier rooming accommodation agreement; and
  (b) the provider gave the resident a copy of the body corporate by-laws in relation to the earlier agreement.

Division 7 Pets

26 Keeping pets and other animals in resident's room – ss 256B and 256G

(1) The resident may keep a pet or other animal in the resident's room only with the approval of the provider.
(2) However, the resident may keep a working dog in the resident's room without the provider's approval.

SAMPLE: not a real agreement

(3) The resident has the approval of the provider to keep a pet in the resident's room if keeping the pet in the room is consistent with item 20.

Notes –

1 If item 20 states 2 cats, the resident is approved by the provider to keep up to 2 cats in the resident's room.

2 For additional approvals to keep a pet in the resident's room see clause 28.

(4) An authorisation to keep the pet or working dog in the resident's room continues for the life of the pet or working dog and is not affected by any of the following matters –

(a) the ending of this agreement, if the resident continues occupying the room under a new agreement;

(b) a change in the provider or provider's agent;

(c) for a working dog – the retirement of the dog from the service the dog provided as a working dog.

(5) An authorisation to keep a pet, working dog or other animal in the resident's room may be restricted by a body corporate by-law, house rules or other law about keeping animals at the rental premises.

Examples –

1 The rental premises may be subject to a local law that limits the number or types of animals that may be kept at the premises.

2 The rental premises may be subject to a body corporate by-law that requires the resident to obtain approval from the body corporate before keeping a pet at the premises.

27 Resident responsible for pets and other animals – s 256C

(1) The resident is responsible for all nuisance caused by a pet or other animal kept in the resident's room, including, for example, noise caused by the pet or other animal.

(2) The resident is responsible for repairing any damage to the resident's room or inclusions caused by the pet or other animal.

(3) Damage to the resident's room or inclusions caused by the pet or other animal is not fair wear and tear.

28 Request for approval to keep pet – ss 256D and 256E

(1) The resident may, using the approved form, request the provider's approval to keep a stated pet in the resident's room.

(2) The provider must respond to the resident's request within 14 days after receiving the request.

(3) The provider's response to the request must be in writing and state –

(a) whether the provider approves or refuses the resident's request; and

(b) if the provider approves the resident's request subject to conditions – the conditions of the approval; and

Note – See clause 29 for limitations on conditions of approval to keep a pet in the resident's room.

(c) if the provider refuses the resident's request –

(i) the grounds for the refusal; and

(ii) the reasons the provider believes the grounds for the refusal apply to the request.

(4) The provider may refuse the request for approval to keep a pet in the resident's room only on 1 or more of the following grounds –

(a) keeping the pet would exceed a reasonable number of animals being kept in the room or at the rental premises;

(b) the room is unsuitable for keeping the pet because of a lack of appropriate space or another things necessary to humanely accommodate the pet;

(c) keeping the pet is likely to cause damage to the room or inclusions that could not practicably be repaired for a cost that is less than the amount of the rental bond for the room;

(d) keeping the pet would pose an unacceptable risk to the health and safety of a person, including, for example, because the pet is venomous;

(e) keeping the pet would contravene a law;

(f) keeping the pet would contravene a body corporate by-law or house rule applying to the rental premises;

(g) if the provider proposed reasonable conditions for approval and the conditions comply with clause 29 – the resident has not agreed to the conditions;

(h) the animal stated in the request is not a pet as defined in section 256A;

(i) another ground prescribed by a regulation under section 256E(1)(i).

(5) The provider is taken to approve the keeping of the pet in the resident's room if –

(a) the provider does not comply with subclause (2); or

(b) the provider's response does not comply with subclause (3).

29 Conditions for approval to keep pet in resident's room – s 256F

(1) The provider's approval to keep a pet in the resident's room may be subject to conditions if the conditions –

(a) relate only to keeping the pet in the resident's room; and

(b) are reasonable having regard to the type of pet, the room and the rental premises; and

(c) are stated in the written approval given to the resident under clause 28(3).

(2) Without limiting subclause (1)(b), the following conditions of the provider's approval are taken to be reasonable –

(a) a condition requiring the pet generally be kept in the resident's room;

(b) if the pet is capable of carrying parasites that could infest the resident's room – a condition requiring the room to be professionally fumigated at the end of this agreement;

(c) if the pet is allowed inside the resident's room – a condition requiring carpets in the room to be professionally cleaned at the end of this agreement.

(3) A condition of the provider's approval to keep a pet in the resident's room is void if the condition –

(a) would have the effect of the provider contravening section 176 or 177; or

(b) would, as a term of this agreement, be void under section 178; or

(c) would increase the rent or rental bond payable by the resident; or

(d) would require any form of security from the resident.

(4) For subclause (2), the resident's room is professionally fumigated, and carpets are professionally cleaned, if the fumigation and cleaning are done to a standard ordinarily achieved by businesses selling those services.

Division 8 When agreement ends

30 Ending of agreement – s 366

(1) This agreement ends only if –

(a) the provider and resident agree, in a separate written document, to end this agreement; or

(b) the provider gives the resident a notice requiring the resident to leave the rental premises and the resident leaves the premises; or

Note – The notice must comply with chapter 5, part 2 of the Act.

(c) the resident or provider gives a notice terminating the agreement on a stated day; or

Note – The notice must comply with chapter 5, part 2 of the Act.

(d) the resident vacates, or is removed from, the rental premises after receiving a notice from a mortgagee or appointed person under section 384; or

(e) the resident abandons the resident's room and the period for which the resident has paid rent has ended; or

Note – See section 509 for indications the resident has abandoned the resident's room.

(f) the tribunal makes an order terminating this agreement.

SAMPLE: not a real agreement

(2) Also, this agreement ends for a sole resident if –

(a) the resident gives the provider a notice ending residency interest and vacates the rental premises; or

Note – See chapter 5, part 2, division 3, subdivision 2A of the Act for the obligations of the resident and provider relating to a notice ending residency interest.

(b) the resident dies.

Note – See section 387A for when this agreement ends if a sole resident dies.

31 Condition room must be left in – 253

(1) At the end of this agreement, the resident must leave the resident's room and inclusions, as far as possible, in the same condition they were in at the start of this agreement, fair wear and tear excepted.

Examples of what may be fair wear and tear –

- wear that happens during normal use
- changes that happen with ageing

(2) The resident's obligation mentioned in subclause (1) does not apply to the extent the obligation would have the effect of requiring the resident to repair, or compensate the provider for, damage to the resident's room or inclusions caused by an act of domestic violence experienced by the resident.

For more information visit the Domestic violence in a rental property webpage on the RTA website.

32 Keys

At the end of this agreement, the resident must return to the provider all keys for the resident's room and the rental premises.

33 Goods or money left behind in rental premises – ss 392 and 393

(1) The resident must take all of the residents belongings from the rental premises at the end of this agreement.

(2) The provider must not treat belongings left behind as the provider's own property, but must deal with them under sections 392 and 393.

Division 9 Miscellaneous

34 Supply of goods and services – s 176

(1) The provider or the provider's agent must not require the resident to buy goods or services from the provider, the provider's agent or a person nominated by the provider or provider's agent.

(2) Subclause (1) does not apply to –

(a) a requirement about a food service, personal care service or utility service; or

(b) a condition of an approval to keep a pet in the resident's room if the condition –

(i) requires the carpets in the room to be cleaned, or the room to be fumigated, at the end of this agreement; and

(ii) complies with clause 29; and

(iii) does not require the resident to buy cleaning or fumigation services from a particular person or business.

35 Provider's agent – s 248

(1) The name and address for service of the provider's agent is stated in item 3.

(2) Unless a special term provides otherwise, the provider's agent may –

(a) stand in the provider's place in any application to the tribunal by the provider or the resident; or

(b) do any thing else the provider may do, or is required to do, under this agreement.

Note – See also sections 24 and 25.

36 Notices

(1) A notice under this agreement must be written and, if there is an approved form for the notice, in the approved form.

(2) A notice from the resident to the provider may be given to the provider's agent.

(3) A notice may be given to a relevant party –

(a) by giving it to the party personally; or

(b) if an address for service for the relevant party is stated in item 1, 2, 3 or 4 – by leaving it at the address or sending it by prepaid post as a letter to the address; or

(c) if an electronic address for a type of electronic communication for the relevant party is stated in item 1, 2, 3 or 4 and item 5 indicates that a notice may be given by that type of electronic communication – by sending it by electronic communication to the electronic address in accordance with the *Electronic Transactions (Queensland) Act 2001*.

Examples of types of electronic communication –
email, facsimile, text message

(4) If no address for service is stated in item 2 for the resident, the resident's address for service is taken to be the address of the rental premises.

(5) A relevant party may change their address for service or electronic address only by giving notice to each other relevant party of their new address for service or a new electronic address.

(6) On the giving of a notice of a new address for service or new electronic address for a relevant party, the address for service or electronic address stated in the notice is taken to be the relevant party's address for the relevant item in this agreement.

(7) A relevant party may withdraw their consent to notices being given to them by electronic communication, or to a specific electronic address, only by giving notice to each other relevant party that notices are no longer to be given to the relevant party electronically, or to that electronic address.

(8) Unless the contrary is proved –

(a) a notice left at an address for service is taken to have been received by the person to whom the address relates when the notice was left at the address; and

(b) a notice sent by post is taken to have been received by the person to whom it was addressed when it would have been delivered in the ordinary course of post; and

(c) a notice sent by electronic communication to an electronic address is taken to have been received by the recipient –

(i) if the type of electronic communication is email – when the email enters the recipient's email server; or

(ii) if the type of electronic communication is facsimile—when the sender's facsimile machine produces a transmission report indicating all pages of the notice have been successfully sent; or

(iii) otherwise—at the time stated in the *Electronic Transactions (Queensland) Act 2001*, section 24.

(9) In this clause –

relevant party means –

(a) the provider; or

(b) the resident; or

(c) if there is an agent of the provider—the provider's agent; or

(d) if there is a representative for the resident—the representative.

representative means a person acting for the resident under section 525(1)(c).

SAMPLE: not a real agreement

Part 3 Special terms

Insert any special terms here. See clause 2(4) to 2(6)

Quni Living

1. Quni Living is a business name of Quinnvestments Pty Ltd ABN 65 675 990 968. The provider used the Quni Living platform to advertise the room, verify the resident's identity, and produce this agreement.

2. Quni Living is not the provider, is not a party to this agreement, and is not the provider's agent. Quni Living is not named at item 3 and does not sign this agreement.

3. The provider remains responsible for complying with the Residential Tenancies and Rooming Accommodation Act 2008 and with this agreement.

4. Quni Living is not a party to any dispute between the provider and the resident, does not represent either of them, and takes no part in proceedings before the tribunal.

5. Quni Living handles personal information in accordance with its privacy policy at quni.com.au/privacy.

6. These special terms are subject to the Act and to the standard terms in Part 2. Anything in them that is inconsistent with the Act or with a standard term does not apply.

SAMPLE: not a real agreement

The resident/s must receive a copy of any applicable by-laws if copies have not previously been given to the resident/s.
Do not send to the RTA—give this form to the resident/s, keep a copy for your records.

Other languages: You can access a free interpreter service by calling the RTA on 1300 366 311 (Monday to Friday, 8:30am to 5:00pm).

Signature of the agent, manager/provider or provider's agent

Name/trading name

Sam Sample

Signature

Date

Signature of resident 1

Indicate if acting on authority under *Guardianship and Administration Act 2000* or *Powers of Attorney Act 1998.*

Print name

Jordan Example

Signature

Date

Signature of resident 2

Indicate if acting on authority under *Guardianship and Administration Act 2000* or *Powers of Attorney Act 1998.*

Print name

Signature

Date